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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTION TO COMPEL FURTHER REQUESTS FOR PRODUCTION, SET ONE IN PART AND DENYING IN PART

I. INTRODUCTION

This is an action for breach of contract and related claims arising out of the alleged sale of a medical practice. On March 13, 2024, Plaintiffs Benjamin Charchian and Arthur Charchian, as Trustees of the Estate of Dr. David M. Charchian and/or Trustees of the David Charchian and Nazeli Charchian 1997 Revocable Living Trust ("Plaintiffs"), filed the initial complaint. On February 13, 2025, Plaintiffs filed the operative First Amended Complaint ("FAC"), alleging causes of action for (1) breach of contract, (2) account stated, (3) services rendered, and (4) fraud.

On June 29, 2026, Plaintiffs filed the instant motion to compel further responses to Requests for Production, Set One, and for monetary sanctions. On July 13, 2026, Defendant J.H.S. Medical Center ("JHS") filed an opposition, and on July 16, 2026, Plaintiffs filed a reply.

The Court held an Informal Discovery Conference ("IDC") on July 21, 2026, at which the Court provided the parties with guidance concerning the discovery disputes raised in the motion. The matter was thereafter continued to allow the parties to supplement their responses and briefing consistent with the Court's guidance.

On August 3, 2026, JHS filed a supplemental brief, and on August 5, 2026, Plaintiffs filed a supplemental brief. The matter is now back before the Court for hearing.

In light of the parties' supplemental responses and briefing following the IDC, the Court addresses only those discovery issues that remain outstanding.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general

III. ANALYSIS

NOS. 14 and 15 - Pre-Sale Accounting Records and Post - Sale Accounting Records

Request No. 14 seeks JHS's accounting records for the two fiscal years preceding the July 22, 2022, sale, while Request No. 15 seeks the same categories of accounting records from the date of the sale to the present. (SS, pp. 2-3.)

Following the IDC, Plaintiffs agreed to narrow Request No. 14 to one year before the sale. Plaintiffs argue that the pre-sale records remain relevant because JHS admits it did not calculate Net Income under the APA. According to Plaintiffs, comparing JHS's pre-sale and post-sale income may help establish the financial impact of the acquired assets and determine whether post-sale revenues were attributable to those assets. (Ps Supp Brief, pp. 3-4.)

JHS maintains its objections to the pre-sale records. JHS contends this is consistent with the Court's guidance at the IDC that pre-sale objections would be permitted, while post-sale records would be relevant. JHS also relies on Plaintiffs' response to Form Interrogatory No. 50.2, in which Plaintiffs allegedly stated that the breach was ongoing on and after January 2023. JHS therefore argues that there is no remaining dispute concerning the pre-sale portion.

As to Request No. 15, JHS's amended response states that it will produce all non-privileged responsive documents on or before August 10, 2026. As to Request No. 14, although Plaintiffs have narrowed the requested period to one year preceding the sale, the Court finds the proposed narrowing does not resolve the underlying concerns. The request still seeks JHS's accounting records from before its acquisition of the Purchased Assets. Plaintiffs' theory that JHS's pre-sale income may serve as a baseline for comparison with its post-sale income is too attenuated to establish good cause for production of JHS's pre-sale accounting records.

Thus, DENIED as to No. 14 and GRANTED as to No. 15.

NOS. 16 and 17

Request No. 16 seeks JHS's income statements, balance sheets, and other financial statements from January 1, 2019, to the present. Request No. 17 similarly seeks monthly, quarterly, annual, or other periodic reports reflecting JHS's assets, liabilities, revenues, expenditures, or other financial information during the same period. (SS, pp. 11-13.)

For the same reasons discussed with respect to Request No. 14, the Court finds that Plaintiffs' proposed narrowing does not sufficiently tailor the request to the financial information at issue under the Purchase Agreement. The pre-sale portion of Request No. 16 continues to seek JHS's financial information from before its acquisition of the Purchased Assets. As to the post-sale portion, JHS has agreed to produce responsive documents.

No. 17 is duplicative of No. 16.

Thus, GRANTED IN PART. As to No. 16 limited to the period from July 22, 2022, to the present, and DENIED to pre-sale period. Motion is DENIED as to No. 17 for being duplicative.

NOS. 18 and 19

Request No. 18 seeks JHS's monthly, quarterly, annual, or periodic reports reflecting "Net Income," as defined in the Purchase Agreement, from July 22, 2022, to the present. Request No. 19 seeks documents relating to JHS's calculations of "Net Income" during the same period. (SS, pp. 14-17.)

At the IDC, the Court advised JHS to condense and simplify its responses to comply with the requirements of the Code of Civil Procedure and, specifically as to Request No. 18, to provide an objection-free response if JHS's position was that no responsive documents existed.

Consistent with the Court's guidance, JHS served amended responses to Requests Nos. 18 and 19 pursuant to Code of Civil Procedure section 2031.230, stating that, following a diligent search and reasonable inquiry, no responsive documents exist within its possession, custody, or control and that no such documents ever existed. JHS explains that it did not compute Net Income and therefore did not create the reports or calculations sought by these requests.

Thus, the motion is DENIED as to Nos. 18 and 19.

NOS. 21-23

Request No. 21 seeks reports from JHS's patient-management and electronic-health-record software reflecting visits or revenue generated by former CMC patients who continued care with JHS after July 22, 2022. Request No. 22 seeks the underlying electronic data reflecting the same information. No. 23 seeks JHS patient census from July 22, 2020, to present. (SS, pp. 18-27.)

At the IDC, the Court advised JHS to simplify its responses and provide an inability-to-comply response pursuant to Code of Civil Procedure section 2031.230 if its position was that responsive documents did not exist. JHS subsequently amended its responses to state, following a diligent search and reasonable inquiry, that no responsive documents exist within its possession, custody, or control because JHS cannot identify which of its current or former patients were previously CMC patients. JHS explains that Plaintiffs removed CMC's paper patient files following the sale, preventing JHS from making that identification.

The Court does not intend to compel JHS to produce documents or data that do not exist. However, to the extent responsive information exists electronically and is within JHS's possession, custody, or control, it must be produced. If, following a diligent search and reasonable inquiry, no responsive electronic documents or data exist, JHS must clearly state that in its verified response.

Thus, the motion as to Nos. 21-23 is GRANTED.

Sanctions

The Court declines to impose monetary sanctions. In light of the parties' participation in the IDC, JHS's subsequent service of amended responses, and the parties' legitimate disputes concerning the scope of the requested discovery, the Court finds

that the circumstances make the imposition of sanctions unjust.

IV. ORDER

The Court GRANTS in part and DENIES in part the motion to compel further responses to RFP, Set One. The Court further denies request for monetary sanctions.

Plaintiff is to give notice.

Dated: August 10, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT